

Justiciability Problem Question

Answer the following question:

The Queensland government has for some time been concerned about the potential for recreational scuba diving to damage the Great Barrier Reef and thereby, impact on the State's tourism industry. Cabinet issues a statement that after having consulted with a panel of scientists it will now be government policy to limit the number of permits that are granted to scuba diving operators by reference to specified criteria relevant to the preservation of the reef.

You act for a tour operator who wants to conduct recreational scuba diving on the Great Barrier Reef. It is concerned that Cabinet, in formulating this policy, has not taken into account all of the relevant scientific data and believes that it should have been offered an opportunity to make submissions to Cabinet before it made this policy statement.

Focussing on the issue of 'Justiciability' - Give advice explaining how the court might approach this issue of whether Cabinet's decision will be amenable to judicial review.

Note: It is not the courts place to deal with extremely controversial decisions, these matters should be left to parliament.

Here, the decision of limiting the amount of permits to the reef is complex and technical as it would require the research of a large number of scientists in order to reach a conclusion on its appropriateness.

This would be analogous to Peko which regarded the Minister for heritage and environment where the issue was too technical for the court therefore making judicial review

inappropriate. This would mean it was non-justiciable because the threshold requirement would fail.

Minister for Arts, Heritage and Environment v Peko-Wallsend (1987) 15 FCR 274

Facts: Crown sought to make Kakadu National Park a UN Heritage site using its prerogative power.

This would disadvantage Peko's ability to mine for minerals in the future. The decision was said to be immune from judicial review because it is a decision made under the prerogative being an act done towards a nation or body under an international treaty.

Held:

- They talked about the fact that some of the issues were so complex like the impact on the economy, environment, aboriginal's rights... that it was beyond review on the court.
- Lord Diplock test for determining the availability of judicial review – "to qualify as a subject for judicial review, the decision must have consequences which affect some person (or body of persons). It must affect such other person either:

(a) by altering rights or obligations of that person which are enforceable by or against him in private law; or

(b) by depriving him of some benefit he had been permitted in the past which he can expect to continue to do or assurance that decision will not be withdrawn without giving him the opportunity of contending.